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U.S. Department of State Diplomacy in Action

Cameroon

Bureau of Democracy, Human Rights, and Labor

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Cameroon is a republic dominated by a strong presidency. Despite the country's multiparty system of government, the Cameroon People's Democratic Movement (CPDM) has remained in power since the early years of independence. In October, CPDM leader Paul Biya won re-election as President. The primary opposition parties fielded candidates; however, the election was flawed by irregularities, particularly in the voter registration process. The President retains the power to control legislation or to rule by decree. He has used his legislative control to change the Constitution and extend the term lengths of the presidency. The judiciary was subject to significant executive influence and suffered from corruption and inefficiency.

The national police (DGSN), the National Intelligence Service (DGRE), the Gendarmerie, the Ministry of Territorial Administration, Military Security, the army, the civilian Minister of Defense, the civilian head of police, and, to a lesser extent, the Presidential Guard are responsible for internal security; the DGSN and Gendarmerie have primary responsibility for law enforcement. The Ministry of Defense, including the Gendarmerie, DGSN, and DRGE, are under an office of the Presidency, resulting in strong presidential control of internal security forces. Although civilian authorities generally maintained effective control of the security forces, there were frequent instances in which elements of the security forces acted independently of government authority. Members of the security forces continued to commit numerous serious human rights abuses.

The majority of the population of approximately 16.3 million resided in rural areas; agriculture accounted for 24 percent of gross domestic product. Real gross domestic product growth has averaged 4 to 5 percent annually with approximately 2 percent inflation. However, a rather large parastatal sector, excessive public-sector employment, and the Government's inability to deregulate the economy inhibited private investment and further economic recovery. Widespread corruption within the business sector and the Government also impeded growth. Members of the Beti ethnic group, including the Bulu subgroup, figured prominently in the Government, civil service, and the management of state-owned businesses.

The Government's human rights record remained poor, and the Government continued to commit numerous serious human rights abuses. Citizens' ability to change their government remained severely limited. Security forces committed numerous unlawful killings and were responsible for regular torture, beatings, and other abuses of persons, particularly detainees and prisoners. Impunity remained a serious problem. Prison conditions remained harsh and life threatening. Security forces continued to arrest and detain arbitrarily various opposition politicians, local human rights monitors, and other citizens, often holding them for prolonged periods without charges or trials, and, at times, incommunicado. The Government regularly infringed on citizens' privacy. The Government continued to restrict freedoms of speech and press and harassed and threatened journalists. The Government restricted freedom of assembly and limited freedom of association. Security forces

limited freedom of movement. Corruption was a serious problem. Violence and discrimination against women remained serious problems. There were reports of trafficking in persons, primarily children, for the purposes of forced labor. Societal discrimination against indigenous Pygmies and ethnic minorities continued. The Government continued to infringe on worker rights and restricted the activities of independent labor organizations. Child labor remained a serious problem. There were reported incidents of slavery and forced labor, including forced child labor.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including

Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

There were reports of one politically motivated killing by government agents; and security forces continued to commit unlawful killings, including killings resulting from excessive force. Unlike in the previous year, there were no reports that security forces summarily executed suspected criminals.

On August 20, the private guards of Member of Parliament (M.P.) Gah Gwanyin Doh III, who was also the Fon (traditional ruler) of Balikumbat, a locality of the North West Province, reportedly beat to death John Kohntem, the District Chairman of the Social Democratic Front (SDF), the country's leading opposition party. The guards killed Kohntem when he was returning from a meeting about presidential election preparations, in which he accused the M.P. of committing pre-electoral fraud. Reports from regional political leaders, human rights advocates, journalists, and others indicated that Kohntem was killed because he challenged the Fon's traditional authority. There were no indications of involvement in the killing by the executive branch of the Government. In early September, police reportedly arrested and detained 11 suspects; however, the M.P., who had parliamentary immunity from prosecution, was not arrested. At year's end, a police investigation was ongoing, and the National Commission on Human Rights (NCHRF) was also investigating this case.

Prisoners died in custody during the year, due to abuse by security forces, harsh prison conditions, and inadequate medical treatment. For example, on January 30, prison wardens at the New-Bell prison in Douala beat to death Emmanuel Song Bahanag, whom the wardens had accused of assisting four convicts to escape. On February 7, the Director of Penitentiary Administration visited the prison, but by year's end, there was no record of any official investigation.

In April, police arrested and detained Laurent Gougang for 2 days on charges of robbery before transferring him to the Douala Judiciary Police headquarters, where he died. After his death, the Douala Prosecutor ordered an investigation and an autopsy, the latter of which confirmed that Gougang died from severe, continuous torture. At year's end, the investigation was ongoing, and no arrests had been made.

By year's end, there were no developments in the July 2003 death of Emmanuel Banye in police custody.

During the year, police used excessive force. There were numerous incidents where police beat and shot suspects, many of whom were fleeing the police. The police used deadly excessive force on a number of occasions. For example, on February 16, Christophe Ndi, a police officer in plainclothes, shot and killed security guard Justin Abena Ngonu. According to a subsequent investigation, Ndi was beating a girl on a street in Mbandjock in the Center Province when Abena Ngonu attempted to intervene. By year's end, Ndi was transferred to a different police precinct, and an investigation was ongoing.

On March 30, Samuel Mpacko Dikoume, an officer of the Douala anti-gang police unit, shot and killed Abel Ngosso in the Douala neighborhood of Bonadibong. Ngosso reportedly began to run from an unmarked car following him, and Officer Dikoume shot and killed him. By year's end, Officer Dikoume was under investigative detention, awaiting trial.

On May 12, police and gendarmes—including Police Inspectors Stephen Nguh and John Kunde, Second Grade Police Inspector Tonye, the Marshal of the Legion Tokoto, and Gendarme Major Lekunze--reportedly beat and severely burned Afuh Bernard Weriwo, who later died of his injuries. Police said they believed Weriwo had stolen a bicycle. The officers handcuffed Weriwo, beat him severely, and repeatedly burned him on his arms and legs while interrogating him at a roadside checkpoint near Kumba. Inspector Nguh allegedly forced Weriwo to drink Kerosene and set him on fire. In late July, Police Inspector Nguh was incarcerated. At year's end, an investigation by police and the NCHRF continued; however, no action had been taken against the other officers involved.

On June 28, Gendarme Nohote Messina shot and killed Desire Etoundi during a dispute at a bar in the Mvog-Mbi neighborhood of Yaounde. Authorities arrested Messina, and on July 6, he was transferred to the Yaounde Military Tribunal for preliminary hearings. At year's end, the case was ongoing.

In late March, the Douala Military Tribunal sentenced a gendarme officer to a prison term for the 2003 death of army soldier Benangui.

There were no new developments in the July 2003 killing of David Nesoe by an anti-gang police unit; the July 2003 killing by police of taxi driver Yeyena Ayoubu and four persons protesting that killing; the August 2003 killing of Juvenile Mbanzamihiogo; or the 2003 sentencing of Barthelemy Angandi.

There were no new developments in the 2003 appeal of the acquittal of six army officers charged with the execution of nine youths in Bepanda.

Mob violence and summary justice against those suspected of theft and the practice of witchcraft continued to result in deaths and serious injuries. Such incidents were reportedly the result of the long period of time it often took for law enforcement to respond to requests for assistance and the fact that many individuals arrested for serious crimes were released without charge hours after their arrests (see Section 1.d.).

On March 16, a mob burned to death Ngambi Evaristus, who reportedly had mental disabilities, after he allegedly killed Mama Assanah Chuyi in the North West. There were no reports that this case was under investigation at year's end.

On July 20, an angry crowd lynched Serge Ngogang in the Carrefour Tif neighborhood of Douala after he reportedly was caught stealing construction materials. By year's end, there were no reports that this case was under investigation.

On August 9, a mob beat to death two suspected thieves in Kumba in the South West Province. Their bodies were reportedly left on a street corner for days to serve as an example to others. In July and August, there were also credible reports of suspected thieves being stoned and burned to death near the North West town of Bamenda. There were no reports that any of these incidents were under investigation at year's end.

In September, a mob beat and killed Desire Sinzeu and Philegon Silatchom in the Banengo I neighborhood of Bafoussam in the West Province. The two were reportedly members of a local gang of thieves responsible for a number of area robberies. Security forces attempted to intervene to protect the individuals but were too late. By year's end, the Provincial Office of Judicial Police ordered an investigation, and 10 suspects had been arrested.

There were no developments in any of the 2003 mob killings.

b. Disappearance

There were no reports of politically motivated disappearances during the year.

Some disappearances of persons who were in the custody of security forces in past years may be attributed to summary executions by security forces either in Douala or the northern regions; in these instances, bodies rarely were found, but the suspects were presumed dead.

There were no developments in the March 2002 disappearance of nine youths detained in the Bafoussam Gendarmerie brigade.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibits such practices; however, there were credible reports that security forces continued to regularly torture, beat, and otherwise abuse prisoners and detainees. In the majority of cases of torture or abuse, the Government rarely investigated or punished any of the officials involved. There were reports that security forces detained persons at specific sites where they tortured and beat detainees (see Section 1.a.). Security forces also reportedly subjected women, children, and elderly persons to abuse. Numerous international human rights organizations and some prison personnel reported that torture was widespread; however, most reports did not identify the victim because of fear of government retaliation against either the victim or the victim's family. Most victims did not report torture for fear of government reprisal, or because of ignorance of or lack of confidence in the judicial system.

In New Bell and other non-maximum security penal detention centers, prison guards inflicted beatings, and prisoners were reportedly chained or at times flogged in their cells. Authorities often administered beatings in temporary holding cells within a police or gendarme facility. Two forms of physical abuse commonly reported by male detainees were the "bastonnade," where authorities beat the victim on the soles of the feet, and the "balancoire," during which authorities hung victims from a rod with their hands tied behind their backs and beat them, often on the genitals. There were reports that some nonviolent political activists have experienced this abuse during brief detentions that followed participation in opposition party activities (see Section 2.b.).

Security forces continued to subject prisoners and detainees to degrading treatment, including stripping, confinement in severely overcrowded cells, and denial of access to toilets or other sanitation facilities. Police and gendarmes often beat detainees to extract confessions or information on alleged criminals. Pretrial detainees were sometimes required, under threat of abuse, to pay "cell fees," a bribe paid to prison guards to prevent further abuse.

During the year, there were reports that persons in police custody died as a result of torture (see Section 1.a.).

In early January, 11 police officers from the Douala 11 police precinct arrested and beat a man named Bikele after reportedly receiving a bribe from the man's girlfriend, who said he had stolen chairs from her house. Bikele claimed that he owned the furniture. By year's end, the police commissioner ordered Bikele's release; however, there were no reports of any sanctions against the perpetrators of the beating.

On May 16, Officer Abo of the Bafang police in West Province and another officer beat a barrister named Saga after Saga refused to produce his identification papers. Saga fell into a coma, from which he later recovered. Saga and the Cameroon Bar Association subsequently filed a lawsuit against the two officers, who remained on active duty at year's end.

On June 15, the Senior Divisional Officer of the Meme Division (a local government official), Joseph Otto Wilson, reportedly assaulted and arrested barrister Epie Nzounkwelle after the taxi cab Nzounkwelle was in almost collided with Wilson's car. Nzounkwelle was released 24 hours later, after the intervention of the Senior State Counsel. The Cameroon Bar Association sued Officer Wilson and the gendarmes who arrested Nzounkwelle, and the case was ongoing at year's end.

Security forces beat and harassed journalists during the year (see Section 2.a.).

On January 15, officers from the gendarmerie Mobile Unit in the Melen neighborhood of Yaounde sexually abused Biloa Ndongo while she was in custody. At year's end, Biloa had a medical report documenting the sexual abuse, but she had not obtained the names of the officers involved and had not filed a complaint.

In late February, the Abong-Mbang First Instance Court sentenced a police officer to a 3-year prison term and ordered the officer to pay \$400 (200,000 CFA) for the rape of a teenager girl during police detention in January.

There were no further developments in the January 2003 shooting of Jules Temeze Nsangou; the August 2003 shooting of Desire Mbeng; the 2002 beating of Narcisse Kouokam; the 2002 beating of men and women in Noun Division, West Province; and the 2002 arrest and severe torture of Jean Rene Ndouma.

Some illegal immigrants were subjected to harsh treatment and imprisonment. Police and gendarme often targeted Nigerian and Chadian communities when seeking to identify illegal immigrants. During raids, members of the security forces extorted money from those who did not have regular residence permits or those who did not have valid receipts for store merchandise.

Prison conditions remained harsh and life threatening. Prisons were seriously overcrowded, unsanitary, and inadequate, especially outside major urban areas. Due to a lack of funds, serious deficiencies in food, health care, and sanitation were common in almost all prisons, including "private prisons" in the north operated by traditional rulers. Prisoners were kept in dilapidated colonial-era prisons, where the number of detainees was four to five times the intended capacity. According to a report by the International Center for Prison Studies, published in late July by the Catholic newspaper La Croix, there were 67 detention centers for the country's approximately 20,000 detainees. Overcrowding was exacerbated by the large number of long pretrial detentions and the practice of "Friday arrests" (see Section 1.d.). In May, a senior official in Bafoussam estimated that out of the 1,800 inmates in his prison, 1,600 were awaiting trial. To relieve the worst of the overcrowding, prisoners were being transferred to less crowded prisons. On July 11, the Penitentiary Administration launched a program to decongest the New-Bell prison in Douala, and 74 inmates were transferred to the Mantum detention center in the North West Province.

Health and medical care were almost nonexistent, and prisoners' families were expected to provide food for their relatives in prison. Douala's New Bell Prison contained 7 water taps for a reported 3,500 prisoners, contributing to poor hygiene, illness, and death.

Prison officials regularly tortured, beat, and otherwise abused prisoners with impunity. Several prisoners died due to harsh prison conditions and inadequate medical treatment. On February 26, Ngaki Tiako, died from untreated tuberculosis in the chambers of the Douala Military Tribunal, where he had been in custody since 2002 on charges of banditry. Corruption among prison personnel was widespread. Prisoners sometimes could bribe wardens for special favors or treatment, including temporary freedom.

In May, the Secretary of State in Charge of Penitentiary Affairs at the Ministry of Territorial Administration, Emmanuel Oteh, visited prisons around the country. As a result of his tour, the refurbishment of a Yaounde detention center formerly used for political prisoners was underway at year's end. Also in May, an additional 800 individuals were recruited to work in the prison system. They were in training at year's end.

There were few detention centers for women, who routinely were held in prison complexes with men, occasionally in the same cells. In July, the Center for Human Rights and Peace Advocacy, a human rights organization based in Bamenda in the North West Province, criticized this practice. Mothers sometimes were incarcerated with their children or babies. Juvenile prisoners often were incarcerated with adults, occasionally in the same cells or wards. There were credible reports that adult inmates sexually abused juvenile prisoners. Pretrial detainees routinely were held in cells with convicted criminals. Some high-profile prisoners were separated from other prisoners and enjoyed relatively lenient treatment.

In the north, the Government continued to permit traditional Lamibe (chiefs) to detain persons outside the government penitentiary system, in effect creating private prisons. Private prisons within the palaces of traditional chiefs Rey Bouba, Gashiga, Bibemi, and Tcheboa had a reputation for serious abuse. In Garoua, in the North Province, palace staff estimated that 50 prisoners were being held in the palace prison annually, normally between 1 and 2 weeks. Individuals who were found guilty were also often beaten or subject to other forms of physical abuse. According to the palace staff, in serious cases, such as murder, the accused individuals were turned over to local police.

The Government has granted international humanitarian organizations access to prisoners. Both the local Red Cross and the NCHRF made infrequent, unannounced prison visits during the year. The Government continued to allow the International Committee of the Red Cross (ICRC) to visit prisons. During the year, the ICRC stated that the Government allowed international NGOs to have increased access to prisons.

d. Arbitrary Arrest or Detention

The law prohibits arbitrary arrest and detention and requires an arrest warrant except when a person is caught in the act of committing a crime; however, security forces continued to arrest and detain citizens arbitrarily.

The DGSN includes the public security force, judicial police, territorial security forces, and frontier police. In rural areas, where there is little or no police presence, the primary law enforcement body is the gendarmerie. Citizens viewed police as ineffective, which resulted in mob violence (see Section 1.a.). It was widely believed that such individuals paid bribes to law enforcement and the judiciary to secure their freedom. Police officers and members of the Gendarmerie were widely viewed as corrupt and frequently arbitrarily arrested and detained citizens. Police demanded bribes at checkpoints, and influential citizens reportedly paid police to make arrests in personal disputes. Impunity was a serious problem. Insufficient funding and inadequate training contributed to a lack of professionalism in the DGSN.

During the year, the Government investigated and prosecuted a few cases of security personnel accused of violating the law between the fall of 2003 and January. For example, on February 24, the Douala Military Tribunal sentenced Luc Raymond Kamlo, a navy soldier, to an 8-year prison term, on banditry charges.

Police legally may detain a person in connection with a common crime for up to 24 hours and may renew the detention three times before bringing charges. The law provides for the right to judicial review of the legality of detention only in the two Anglophone provinces. Otherwise, the French legal tradition applies, precluding judicial authorities from acting on a case until the administrative authority that ordered the detention turns the case over to the prosecutor. After a magistrate has issued a warrant to bring the case to trial, he may hold the detainee in administrative or pretrial detention indefinitely, pending court action. Such detention often was prolonged, due to the understaffed and mismanaged court system. The law permits detention without charge by administrative authorities such as governors and senior divisional officers for renewable periods of 15 days ostensibly to combat banditry and maintain public order. Persons taken into detention frequently were denied access to both legal counsel and family members. The law permits release on bail only in the Anglophone provinces; however, in practice, bail was granted infrequently.

Police and gendarmes often arrested persons on spurious charges on Fridays at mid-day or in the afternoon. While the law in the Anglophone provinces provides for a judicial review of an arrest within 24 hours, the courts did not convene sessions on the weekend, so the detainee remained in detention until at least Monday. Police and gendarmes accepted bribes to make such "Friday arrests" from persons who had private grievances. There were no known cases of policemen or gendarmes that were sanctioned or punished for this practice.

Security forces and government authorities continued to arrest and arbitrarily detain various opposition politicians, local human rights monitors, journalists, and other critics of the Government, often holding them for prolonged periods without charges or trials and, at times, incommunicado (see Sections 2.a. and 4). Police also arrested persons during unauthorized demonstrations (see Section 2.b.).

On May 19, the Minister of State for Culture reportedly ordered the arrest and detention of Clement Tjomb, the Chairman of the Board of the Copyright Association of Professional Photographers and Audiovisual Workers. Earlier that same day, a court had determined that Tjomb had been elected president of the association, and media reports suggested that the Minister supported one of the defeated candidates. On July 30, Tjomb was released from custody without being charged.

In October, gendarmes arbitrarily arrested Bernard Fosso, Secretary General of the African Movement for Total Liberation (Molita) and refused to disclose his location to his family members. Fosso, who said he was arrested because he had criticized the Government, was released several days later without having been charged with a crime.

In November, Fon Chafah XI, a local chief of the Northwest Province, arrested and detained Gabriel Ambo, Promotion Officer for the Human Rights Defense Group, for allegedly stealing from the Fon. Ambo said he was arrested because the Fon believed that he tried to start an affair with the Fon's wife. At year's end, he had been released and his trial was pending.

Police frequently arrested persons without identification during sweeps (see Section 1.f.).

Albert Mukong, who was awaiting trial after having been arrested in 2002 and subsequently released, died on July 12. At year's end, the 19 other Southern Cameroons National Council (SCNC) activists arrested with Mukong continued to await trial.

The law stipulates that detainees must be brought promptly before a magistrate; however, arbitrary prolonged pretrial detention remained a serious problem, and sometimes persons were held incommunicado for months or even years (see Section 1.c.). For example, in mid-September, attorney William Ndieng said his client Benoit Bilongo had been detained without trial for 7 years at the Yaounde Central Prison. During the year, the NCHRF and Ndieng filed a complaint calling for Bilongo's immediate release. By year's end, the case had not been heard by a court. Some persons were detained for several months simply because they were unable to present identification to authorities.

In September, the newspaper Mutations ran a story about Barnabe Atangana, who was arrested in 1984 for theft and whose case has never been brought to trial. According to Atangana's lawyer, the case has been delayed because the court was unable to locate Atangana's file. Atangana was still in custody at year's end.

The law specifies that, after an investigation has concluded, juveniles should not be detained without trial for longer than 3 months; however, in practice, the Government detained juveniles for longer periods of time. Michel Sighanou, a juvenile who was transferred from the Yabassi prison in 1996, has been awaiting trial for more than 7 years.

In recent years, there have been reports that some prisoners remained in prison after completing their sentences or having been released under a court ruling. In late August, the media reported that more than 100 prisoners in Douala were being held after the completion of their terms, and that many of them were being held because they had been unable to pay court fees. During the year, lawyers representing these individuals filed suit for their release and also filed a complaint at the European Court of Human Rights seeking the prisoners' immediate release. By year's end, there were no further developments.

e. Denial of Fair Public Trial

The Constitution provides for an independent judiciary; however, the judiciary remained highly subject to executive influence, and corruption and inefficiency remained serious problems. The court system was subordinate to the Ministry of Justice, which was part of the Presidency. The Constitution specifies that the President is the guarantor of the legal system's independence. He also appoints all judges with the advice of the Supreme Council of the Magistrature. Some politically sensitive cases were never heard by the courts. However, the judiciary has shown some modest signs of growing independence. During the year, the courts found the Government liable for damages in a few human rights cases involving abuses by security officers.

The court system includes the Supreme Court, a Court of Appeals in each of the 10 provinces, and courts of first instance in each of the country's 58 divisions.

Customary courts served as a primary means for settling civil disputes in rural areas, primarily in family-related civil cases, such as in matters of succession, inheritance, and child custody. Divorce cases can be brought to customary courts only if the Government has not sanctioned the marriage through an official license. Customary courts may exercise jurisdiction in a civil case only with the consent of both parties. Either party has the right to have the case heard by a statutory court and to appeal an adverse decision in a customary court to the statutory courts. Most traditional courts also permitted appeal of their decisions to traditional authorities of higher rank.

The legal system includes both national law and customary law, and many criminal and civil cases can be tried using either one; however, criminal cases are generally tried in statutory courts, and customary court convictions involving witchcraft automatically are transferred to the statutory courts, which act as the court of first instance. Customary law, which is used most frequently in rural areas, is based upon the traditions of the ethnic group predominant in the region and is adjudicated by traditional authorities of that group. Customary law is deemed valid only when it is not "repugnant to natural justice, equity, and good conscience." However, many citizens in rural areas remained unaware of their rights under civil law and were taught that they must abide by customary laws. Customary law ostensibly provides for equal rights and status; however, men may limit women's right to inheritance and employment, and some traditional legal systems classify wives as the legal property of their husbands (see Section 5).

The legal structure is influenced strongly by the French legal system, although in the two Anglophone provinces certain aspects of the Anglo-Saxon tradition apply. In the past, this mixed legal tradition has led to conflicting court action in cases handled in both Francophone and Anglophone jurisdictions. In June 2003, the International Bar Association began to assess ways to harmonize the criminal legal system; however, by year's end, no reforms had been undertaken.

The Constitution provides for a fair public hearing in which the defendant is presumed innocent. Defendants generally were allowed to question witnesses and to present witnesses and evidence on their own behalf. Because appointed attorneys received little compensation, the quality of legal representation for indigent clients often was poor. The Bar Association and some voluntary organizations, such as the Cameroonian Association of Female Jurists, offered free assistance in some cases. The Project for the Improvement of Conditions of Detention to engage lawyers to work on prison cases continued. Trials normally were public, except in cases with political overtones and cases judged disruptive to social peace.

On July 2, the Yaounde High Instance Court ruled in favor of Innocent Belinga, who had been held without formal charge since his arrest in 2000. The court ordered the state treasury to pay Belinga's legal fees.

Political bias often stopped trials or resulted in an extremely long process, with extended court recesses. Powerful political or business interests enjoyed virtual immunity from prosecution; some politically sensitive cases were settled with a payoff.

Military tribunals may exercise jurisdiction over civilians when the President declares martial law and in cases involving civil unrest or organized armed violence. Military tribunals also have jurisdiction over gang crimes, banditry, and highway robbery. The Government interpreted these guidelines broadly and sometimes used military courts to try matters concerning dissident groups and political opponents. Military trials often were subject to irregularities and political influence.

The Government held political prisoners, including SCNC activists and other Anglophones; however, there was no reliable estimate of the number being held at year's end. The Government permitted international humanitarian organizations to access political prisoners; during the year, the International Federation of Human Rights visited political prisoners in several prisons.

In October 2003, the Supreme Court upheld the 1999 ruling of a lower court that convicted Titus Edzoa, former Minister of Health and long-time presidential aide who opposed President Biya in the 1997 election, on charges of embezzlement of public funds with Michel Thierry Atangana, his campaign manager, and sentenced Edzoa to a prison term. He was ordered to

pay a substantial fine and incarcerated at the maximum-security Gendarmerie headquarters, with very limited access to visitors; Edzoa and Atangana were arrested prior to the 1997 election.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The Constitution prohibits such actions; however, these rights were subject to the "higher interests of the State," and there were numerous, credible reports that police and gendarmes harassed citizens, conducted searches without warrants, and opened or seized mail. The Government continued to keep some opposition activists and dissidents under surveillance. Police sometimes punished family members and neighbors of criminal suspects.

The law permits a police officer to enter a private home during daylight hours without a warrant if he is pursuing an inquiry and has reason to suspect that a crime has been committed. The officer must have a warrant to make such a search after dark; however, a police officer may enter a private home at any time in pursuit of a criminal observed committing a crime.

An administrative authority may authorize police to conduct neighborhood sweeps without warrants, at times involving forced entry into homes in search of suspected criminals or stolen or illegal goods. Although there were fewer sweeps during the year than in the previous year, these sweeps continued to occur in Yaounde and Douala. Typically, security forces sealed off a neighborhood, systematically searched homes, arrested persons arbitrarily, and seized suspicious or illegal articles. There were credible reports that security forces used such sweeps as a pretext to loot homes and arbitrarily arrest persons for minor offenses, such as not possessing identity cards (see Section 1.c.). For example, on January 14, the Douala police conducted sweeps in the Douala neighborhoods of Nkomondo, Bata-Cogo, and Bonibong. During this operation, police reportedly arrested 50 individuals, including 6 undocumented foreigners; by year's end, all those arrested were released after paying fines. Police also reportedly seized motorcycles and electronics during the sweeps. The Douala police conducted another series of sweeps in late September in Ndokoti, Akwa, Deido, and Bonaberi, all neighborhoods in and around Douala.

During the year, the Ministry of Towns indicated that the houses the Government destroyed prior to the 2001 France-Africa Summit were illegally built on state land and that their owners were not entitled to compensation. The Government continued to prevent persons from reoccupying the site from which they were removed.

There continued to be accusations, particularly in the North and Far North Provinces, that traditional chiefs arbitrarily evicted persons from their land.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of speech and of the press; however, the Government continued to restrict these rights in practice. The Government sometimes invoked strong libel laws to silence criticism of the Government and officials. Journalists, particularly broadcast journalists, often practiced self-censorship as a result of significant government intimidation and harassment.

The Government published one of the country's few daily newspapers, the Cameroon Tribune. It did not report extensively on protests or political parties critical of the Government, overtly criticize the ruling party, or portray government programs in an unfavorable light.

During the year, approximately 200 privately owned newspapers were published; however, only an estimated 20, including Mutations, a privately owned daily newspaper, were published on a regular basis. Newspapers were distributed primarily in urban areas, and most continued to criticize the Government and report on controversial issues, including corruption, human rights abuses, and economic policies. However, the Government used criminal libel laws to inhibit the press, and during the year, laws concerning the propagation of false information were also criminalized.

The publication, distribution, and sale of La Tribune de l'Est, a private newspaper highly critical of the Government, was no longer banned. During the year, the newspaper faced no harassment by the Government.

Despite the large number of private newspapers in the country, the influence of print media was minimal. Distribution was problematic outside of major towns, and prices of independent newspapers were high, due largely to high government taxes on newsprint; however, during the year, the Government established a special fund to support the development of the press, particularly newspapers, and funds were dispersed to some private newspapers and radio stations during the year. According to media reports, funding was awarded very selectively, and some media outfits, such as Mutations and Radio Reine, refused to apply for funds because of the lack of accountability measures for the disbursement of funds. In addition, government control of newspaper warehouses allowed the seizure of controversial editions of certain newspapers prior to distribution. For example, the Government seized two editions of Mutations and one edition of Insight magazine because of controversial articles.

The Government tightly controlled the broadcast media. Radio remained the most important medium reaching most citizens. There were approximately 20 privately owned radio stations operating in the country. The state-owned Cameroon Radio Television (CRTV) broadcast on both television and radio and was the only officially recognized and fully licensed broadcaster in the country. The Government levied taxes on all registered taxpaying citizens to finance CRTV programming, which allowed CRTV a distinct advantage over independent broadcasters.

Non-profit rural radio stations were required to submit an application to broadcast but were exempt from paying licensing fees. Potential commercial radio and television broadcasters must submit a licensing application and pay an application fee when the application is submitted. Once the license is issued, stations must then pay a licensing fee. The annual licensing fees potentially were prohibitive. Between 1999 and year's end, the Ministry of Communication received more than 100 applications from potential broadcasters; however, no licenses had been issued to any private radio or TV stations by year's end. In many cases, the Government allowed stations to operate while their licensing applications were pending, although the legal status of stations established before 2000 was not well defined and appeared to be illegal.

Although the Communications Ministry had not responded to station requests for licenses since 2000, the Government issued a December 2003 ultimatum to the many stations that were operating illegally, stating that they would have to submit the proper paperwork or close down by December 31, 2003. Between December 2003 and January, 12 stations stopped broadcasting during a 3-week period to bring their licensing applications up to date. Most of these stations, including some that were critical of the Government, resumed broadcasting in January and continued to broadcast at year's end. Although the Government did not forcibly close any stations, it refused to register several stations that did not submit what the Government deemed to be appropriate applications, and those stations closed on their own initiative.

There were several low-power, rural community radio stations with extremely limited broadcast range that were funded by the U.N. Educational, Scientific, and Cultural Organization (UNESCO) and foreign countries. These stations, which broadcast programs on education, health, the environment, and development to small audiences, were not allowed to discuss politics. The law permits broadcasting of foreign news services but requires the foreigners to partner with a national station. The British Broadcasting Company (BBC), Radio France International, and Voice of America broadcast in partnership with state-owned CRTV. During the year, the Government continued to allow the reception of international cable and satellite television broadcasts.

Television was less pervasive but more influential than print media. The five independent television stations largely avoided criticizing the Government and generally relayed government information to the public. Unlike in the previous year, there were no reports that the Government controlled private television stations Canal 2 or RTA by monitoring content to ensure compliance with an approved format; in addition, the stations were no longer under a suspension that had been imposed by the Center Province Government in 2003.

Like the Cameroon Tribune, CRTV provided broad reporting of CPDM activities, while giving relatively little attention to the political opposition. During the year, CRTV management continued to repeatedly instruct CRTV staff to ensure that government views prevailed at all times. Prior to and following the campaign period, CRTV television and radio programming included a weekly program, Direct Expression, which ostensibly fulfilled the Government's legal obligation to provide an opportunity for all political parties represented in the National Assembly to present their views. However, during the program, CRTV continued to restrict the freedom of speech of the opposition party, the SDF, by occasionally censoring and significantly shortening proposed SDF programming.

During the presidential campaign period, the Ministry of Communications made some efforts to provide equal airtime on CRTV for presidential candidates to discuss their positions. Most candidates took advantage of this offer; however, three candidates failed to submit material for broadcast. The evening news and other reports continued to focus on the incumbent and the ruling political party. As a result, the incumbent received considerably more coverage than any other candidate.

Security forces continued to restrict press freedom by arresting, detaining, physically abusing, threatening, and otherwise harassing print-media journalists. On May 18, the Mobile Intervention Unit of the Douala police prevented Jean Celestin Edjangué, a press photographer with Le Messenger newspaper, from shooting pictures of a protest near the French consulate. The police injured Edjangué's wrist as he resisted their attempts to seize his camera.

On July 11, police arrested a BBC journalist and a local journalist working temporarily for the BBC in the Bakassi peninsula for alleged espionage. The journalists were moved to the coastal town of Limbe where they were held for 6 days under police guard in a local hotel. They were subsequently released without charge.

On August 31, police arrested Richard Nde, a reporter of the Guardian Post, for libel in the town of Bamenda in Northwest Province after he wrote an article in which he claimed that the mayor of Kumbo in the Northwest Province had embezzled funds. However, many journalists said that he was arrested because his newspaper published a number of articles prior to the presidential election that were critical of the incumbent. By year's end, Nde had paid \$1060 (530 CFA francs) to be released from prison, and he continued to report for the Guardian Post.

There was no action against those responsible for the 2003 abuse of two employees of Mutations.

Unlike in the previous year, there were no reports that the Government forcibly shut down radio stations; however, during the year, the Government forcibly took control of one station and continued to refuse registration to another.

On January 26, the Douala Court of First Instance declared itself incompetent to rule on the case of Freedom FM, a Douala-based private radio station, which the Government had prohibited from going operational in May 2003 on the grounds that the owner had not submitted to the Ministry of Communication an application for operation, the name of the station, or the types of programs the station would broadcast. Freedom FM owner Pius Njawe, who has previously been jailed for criticizing the President, claimed he had submitted an application to the Ministry under a different station name in 2003 but had subsequently informed the Ministry of the name change. In October 2003, the Ministry of Communications filed a lawsuit against Njawe for having illegally created a radio station. In July, the Government rejected an application to broadcast submitted by Freedom FM, and seized the station's broadcasting equipment. According to the Ministry of Communications, the radio equipment had been donated by a foreign government to establish a community radio station, not a private one. By year's end, this case was pending in another court while the Government continued to prevent the station from broadcasting and refused to return the confiscated equipment. In addition, in April Njawe filed a case with the African Commission of Human Rights and Freedom, which was investigating the case at year's end.

Radio Oku, which was closed in December 2003 by a Divisional Officer (local government official), resumed broadcasting in February. In April, the Bui High Court found that the Divisional Officer had acted illegally when he closed Radio Oku, temporarily detained four members of Radio Oku's board of directors, and placed three other members under temporary house arrest. The court ordered the Divisional Officer to relinquish Radio Oku equipment and to pay the station manager approximately \$1,400 (750,000 CFA francs). The Divisional Officer appealed the judgment, and on April 16, he reportedly

arrested the station manager and board chairman. The individuals said they were abused during their 2-day detention. On May 30, the Divisional Officer's agents reportedly took control of the station, stopped its normal programming, and began broadcasting. The Ministry of Communications refused to become involved in the case because it concerned ongoing litigation. At year's end, the Divisional Officer remained in control of the station, and the Divisional Officer's legal appeal remained pending.

During the year, the Government indirectly censored the media and candidates for political office by controlling campaign advertising. On August 25, in anticipation of the October presidential election, the Minister of Communication granted itself extensive control over the content and format of all campaign material. The restrictions on campaign material significantly impeded the amount of advertising and advertising revenues that the print media was able to obtain during the campaign. In addition, the ruling CPDM party used its influence in CRTV radio and television to broadcast special programs, which gave the party additional time to campaign. Requirements that all political advertising be directed to media authorized by the Ministry of Communication meant that most advertising and advertising revenues were obtained by CRTV, the only fully authorized TV or radio network in the country.

Unlike in the previous year, there were no reports that the Government seized print runs of private newspapers or interfered with private newspaper distribution.

The Government prosecuted its critics in the print media through criminal libel laws. These laws authorized the Government, at its discretion and the request of the plaintiff, to criminalize a civil libel suit or to initiate a criminal libel suit in cases of alleged libel against the President and other high government officials; such crimes are punishable by prison terms and heavy fines. Criminal penalties for speech-related offenses resulted in the practice of self-censorship by some journalists.

For example, in July, a court convicted Eric Wirkwa Tayu, the publisher of the small private newspaper Nso Voice based in Kumbo, of defaming Kumbo's mayor, Donatus Njong Fonyuy. The defamation charge reportedly resulted from articles in Nso Voice alleging that the mayor was guilty of corruption. The court sentenced Tayu to 5 months in prison and ordered him to pay a fine of \$600 (300,000 CFA francs). It was not known whether Tayu was able to pay the fine or if he had been released by year's end.

During the year, the Ministry of Communication established a number of new organizations related to the media. On April 30, the Minister of Communication created the Central Office for Press Relations (BCRP) to facilitate the press' access to certain government information (see Section 3).

On September 22, the President appointed members to the long-dormant National Communication Council, which was designed to serve as an advisory body on government regulation of the communications sector. The Council began operating during the year, and in its post-presidential election report, it criticized the imbalance of CRTV's coverage of the campaign, which it said discriminated against opposition parties.

During the year, there were reports that the Government attempted to monitor the Internet. In June, following rumors published on the Internet that President Biya had died, the Minister of Communication established an Internet regulatory taskforce to identify sources of information on the Internet. There were no reports that the taskforce was active during the year. There were no reports that the Government restricted access to the Internet.

Although there were no legal restrictions on academic freedom, state security informants operated on university campuses. Professors said that participation in opposition political parties could affect adversely their professional opportunities and advancement. During the year, free political discussion at Yaounde's universities was hindered by armed government security forces who harassed some students.

b. Freedom of Peaceful Assembly and Association

The law provides for freedom of assembly; however, the Government restricted this right in practice. The law requires organizers of public meetings, demonstrations, or processions to notify officials in advance but does not require prior government approval of public assemblies and does not authorize the Government to suppress public assemblies that it has not approved in advance. However, officials routinely have asserted that the law implicitly authorized the Government to grant or deny permission for public assembly. Consequently, the Government often did not grant permits for assemblies organized by persons or groups critical of the Government and repeatedly used force to suppress public assemblies for which it had not issued permits.

On numerous occasions throughout the year, authorities refused to grant permission to political groups seeking to hold rallies and meetings. For example, on October 22, the Prefect of the Wouri Division in Douala announced that he would not authorize any political rallies because he feared social unrest following the October 11 presidential election. He lifted the ban on October 25, shortly after President Biya was officially declared to have won the election.

Security forces forcibly disrupted the meetings and rallies of trade unions and opposition parties throughout the year; however, unlike in the previous year, no deaths resulted from the police's use of excessive force to disperse demonstrations. For example, on January 12, authorities prevented members of the Front of Alternative Forces (FFA), an opposition coalition, from holding a rally in the Douala neighborhood of Bonanjo and arrested and detained for 6 hours 11 FFA members. On April 2, a gendarmes detachment was deployed in Douala to prevent a political rally organized by the Movement for Democracy and Independence, an opposition political group, despite the fact that the group had received authorization to hold the rally.

On May 22, security forces prevented members of the National Coalition for Reconciliation and Reconstruction (CNRR), an opposition group, from entering the municipal stadium in Ebolowa in the South Province, where an opposition political rally had been scheduled to take place.

In July, members of the CNRR tried to hold weekly rallies in Yaounde to call for the computerization of the voter registration process. Although the Government refused to provide permits for these rallies, the protestors continued to march. On July 6, gendarmes injured some protestors, including an SDF Parliamentarian, when they used excessive force to detain a group of protestors on the street for several hours. On August 3, a similar event occurred and lasted for more than 3 hours, although no injuries were reported.

On August 19, Douala security forces prevented Jean-Jacques Ekindi and members of the FFA from holding a rally in the Douala neighborhood, Akwa. Police arrested and briefly detained five members of the FFA.

On October 21, authorities in Yaounde prevented a press conference at the opposition SDF headquarters from taking place by denying journalists entry to the site.

A few days prior to October 1, a traditional day of protest for Anglophones, there were reports that police in Bamenda arrested four SCNC activists. The individuals were reportedly held for a few days and released without charge.

During the year, the Prefect of Mfoundi lifted a ban he had invoked in 2003 to prevent the National Alliance for Democracy, an opposition party, from holding meetings.

During the year, authorities released five protestors arrested during a protest in September 2003.

No action reportedly was taken against the members of the security forces who forcibly dispersed demonstrations in 2003 or 2002.

The law provides for freedom of association, and the Government limited this right in practice. The 2002 ban on the SCNC remained in effect. At year's end, the Prefect of Douala's Wouri Division continued to maintain a June 2003 ban on all activities of the FFA; the Prefect said that the group was disorderly and had not applied for legal status.

The conditions for government recognition of a political party, a prerequisite for many political activities, were not onerous. More than 180 political parties operated legally, together with a large and growing number of civic associations.

c. Freedom of Religion

The Constitution provides for freedom of religion, and the Government generally respected this right in practice; however, there were a few exceptions.

Religious groups must be approved and registered with the Ministry of Territorial Administration and Decentralization to function legally; there were no reports that the Government refused to register any group. The approval process usually took several years, due primarily to administrative delays. The Government did not register traditional religious groups on the grounds that the practice of traditional religion was a private concern observed by members of a particular ethnic or kinship group or the residents of a particular locality.

On January 7, the Judicial Police arrested Michel Atanga Effa and Gervais Balla as suspects in the 2003 killing of Brother Anton Probst, a German missionary working in the Center Province. The two men remained in custody awaiting formal charges at year's end.

In May, a traditional village ruler, or Fon, beat and fined Pastor Alombah Godlove for providing a Christian burial for a village elder in accordance with the deceased's will. The Fon said that the elder, who was also a member of a traditional religious secret society, should have been buried with traditional rites. At year's end, no legal action had been brought in this case; however, the case was being investigated by the NCHRF.

The practice of witchcraft is a criminal offense under the law; however, individuals generally were prosecuted for this offense only in conjunction with another offense, such as murder. Witchcraft traditionally has been a common explanation for diseases of unknown cause.

Discrimination in the northern provinces, especially in rural areas, by Muslims against Christians and persons who practiced traditional indigenous religions remained strong and widespread.

For a more detailed discussion, see the [2004 International Religious Freedom Report \(//2009-2017.state.gov/j/drl/rls/irf/2004/\)](https://2009-2017.state.gov/j/drl/rls/irf/2004/).

d. Freedom of Movement within the Country, Foreign Travel, Emigration, and Repatriation

The law provides for these rights; however, in practice security forces routinely impeded domestic travel.

Roadblocks and checkpoints manned by security forces proliferated in cities and most highways, making road travel both time-consuming and costly. Extortion of small bribes was commonplace at these checkpoints. Police frequently stopped travelers to check identification documents, vehicle registrations, and tax receipts as security and immigration control measures. During the year, security forces killed at least one person they thought was evading a checkpoint (see Section 1.a.).

There were credible reports that police arrested and beat individuals who failed to carry their identification cards (see Sections 1.c. and 1.f.).

The law prohibits forced exile, and the Government did not use it; however, some human rights monitors or political opponents who considered themselves threatened by the Government left the country voluntarily and declared themselves to be in political exile. For example, on July 17, Anna Ndep Takem, an activist for the SCNC reportedly fled the country after learning that authorities were planning to arrest her for providing food and assistance to detained SCNC activists in the Yaounde Central Prison.

The law provides for the granting of asylum and refugee status in accordance with the 1951 U.N. Convention Relating to the Status of Refugees or its 1967 Protocol, and the Government has established a system of providing protection to refugees. In practice, the Government provided protection against refoulement, the return of persons to a country where they feared persecution, and granted refugee status or asylum. The Government cooperated with the office of the U.N. High Commissioner for Refugees (UNHCR) and other humanitarian organizations in assisting refugees. At year's end, the UNHCR estimated that the country provided temporary protection to approximately 60,000 refugees, the majority of whom were Chadian and Nigerian, in addition to 6,000 asylum seekers.

The Government also provided protection to certain individuals who may not qualify as refugees under the 1951 Convention or its 1967 Protocol.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The Constitution provides that citizens have the right to change their government; however, dominance of the political process by the President and his party and electoral intimidation, manipulation, and fraud severely limited the ability of citizens to exercise this right.

On October 11, President Biya, who has controlled the Government since 1982, was re-elected with approximately 70 percent of the vote in an election widely viewed as freer and fairer than previous elections; however, the election was poorly managed and marred by irregularities. Some observers said progress had been made and called the election transparent; others, such as the Commonwealth Observer Group, stated that the election lacked credibility. One domestic group described the election as a masquerade.

Opposition candidates participated in the electoral process, and the election environment was largely calm and peaceful. However, domestic and international observers witnessed a number of electoral irregularities, particularly with regard to the registration process, methods of identifying voters, the distribution of sufficient ballot papers, and the poor quality of the ink used to identify persons who had already voted. Such irregularities appeared to have led to high levels of voter confusion and apathy. There were also widespread allegations of multiple voting by individuals close to President Biya's party. Following the election, opposition candidates accused the Government of massive vote rigging and appealed (unsuccessfully) to the Constitutional Council for the election to be annulled. The Council ruled against the opposition candidates, either because they had insufficient evidence to sustain their appeals, or because they had filed their complaints incorrectly.

During the year, the Government continued to gradually implement a revised constitution enacted in 1996; the 1972 Constitution remained in force in areas where the 1996 revisions had not yet been implemented. For example, the 1996 Constitution's provision extending the presidential term from 5 to 7 years and permitting President Biya to run for another term was in effect; however, the composition of the National Assembly, an elected body, still was being determined by the 1972 Constitution. Since 1991, only government bills proposed by the Presidency have been enacted by the National Assembly; however, in April, the National Assembly agreed to consider a bill submitted by the leading opposition party. Only parties with representatives in the National Assembly can submit bills for consideration.

The President's control over the country's administrative apparatus was extensive. The President appoints all Ministers, including the Prime Minister, and on December 8, the President appointed a new Cabinet. The President also directly appoints the governors of each of the 10 provinces. The governors, in turn, have considerable power in the electoral process to interpret and implement laws. The President also has the power to appoint important lower level members of the 58 provincial administrative structures, including the senior divisional officers, the divisional officers, and the district chiefs. The governors and senior divisional officers have considerable authority within the areas under their jurisdiction, including the authority to ban political meetings that they deem likely to threaten public order (see Section 2.b.). They also may order the detention of persons for renewable periods of 15 days to combat banditry and other security threats (see Section 1.d.).

The right of citizens to choose their local governments remained circumscribed. The Government has increased greatly the number of municipalities run by presidentially appointed delegates, who have authority over elected mayors. Delegate-run cities included most of the provincial capitals and some division capitals in pro-opposition provinces; however, this practice was nonexistent in the southern provinces, which tended to support the CPDM. In municipalities with elected mayors, local autonomy was limited since elected local governments relied on the central Government for most of their revenue and administrative personnel.

In April, the National Assembly passed legislation that is expected to give popularly elected local councils control over many local government issues. The first election for these decentralized bodies is not scheduled to take place until 2007.

On April 21, the President signed a law establishing the Constitutional Council, which will rule on laws, ensure the fairness of elections, and proclaim the results of elections. The Supreme Court acted as the Constitutional Council during the October 11 presidential election, and by year's end, the members of the Council had not yet been appointed by the President.

On June 13, municipal by-elections were held in five of the six districts where the Supreme Court had annulled the 2002 election results. Observers reported that the election was free but not completely fair; limited improvements were made in comparison to the 2002 election, but many witnessed irregularities including multiple voting, candidates working at polling stations, and extensive campaigning on election day at polling stations. The CPDM won in five of the six districts and maintained its strong majority in the National Assembly. During the campaign, there were some hostile encounters between members of the ruling CPDM party and the opposition SDF party, and security forces took action to prevent violence.

The 2002 legislative and municipal elections, which were dominated by the CPDM, largely reflected the will of the people; however, there were widespread irregularities.

There were more than 180 registered political parties in the country; however, less than 10 were significant, and only 5 had seats in the National Assembly. The ruling CPDM held an absolute majority in the National Assembly; opposition parties included the SDF, based in the Anglophone provinces and the largest of the opposition parties, the National Union for Democracy and Progress, the Cameroon Democratic Union, and the Union of the Peoples of Cameroon.

Corruption remained a serious problem in all branches of Government. The public perception was that judicial and administrative officials were open to bribes in almost all situations. According to a corruption survey taken by Transparency International during the year, more than 50 percent of persons surveyed in the country reported that they or members in their household had paid a bribe in the past 12 months.

During the year, local and international activists continued to criticize the Government's lack of transparency in managing revenues from an international oil pipeline.

During the year, the Government took a few steps to fight corruption. For example, on September 24, President Biya established a code for awarding public contracts in a more transparent manner. The code specifies rules for the awarding, execution, and oversight of public contracts; by year's end, the code had taken effect and authorities reportedly were enforcing it. There was a National Corruption Observatory to combat corruption within the Government at all levels; however, it was severely under-funded, and there were no publicized prosecutions of corrupt government officials during the year. In addition, in December, the Government announced new rules intended to make civil servants more accountable, including a disciplinary process that allows for termination of corrupt employees.

There were no laws providing citizens with access to government information, and in practice, such access was difficult to obtain. Most government documents were not available to the public, including the media. However, on April 30, the Minister of Communication created the Central Office for Press Relations (BCRP), which is charged with indiscriminately providing all press organs with official government information; however, the Government selects the information that is disseminated, and the BCRP was not intended to handle requests for information from the general public. By year's end, the Office had begun operating administratively.

Women held 18 of 180 seats in the National Assembly, 6 of 61 cabinet posts, and a few of the higher offices within the major political parties, including the CPDM.

Many of the key members of the Government were drawn from the President's own Beti/Bulu ethnic group, as were disproportionately large numbers of military officers and CPDM officials.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A number of domestic and international human rights groups generally operated without government restriction, investigating and publishing findings on human rights cases; however, government officials repeatedly impeded the effectiveness of local human rights NGOs during the year by limiting access to prisoners, refusing to share information, and threatening and using violence against personnel. Between mid-May and mid-November, police harassed Philip Njaru, a human rights activist and Executive Director of the Kumba-based Friends of the Press Network, a human rights organization in Southwest Province. Njaru had been investigating and disseminating information on the case of Bernard Afuh, whom the police burned to death (see Section 1.a.). Access by international NGOs to prisons reportedly improved during the year (see Section 1.c.). The activities of virtually all of these groups were limited by a shortage of funds and trained personnel. Observers have criticized the country's NGO laws for giving the Government the opportunity to deny authorization to operate or eliminate NGOs by decree.

Numerous domestic human rights NGOs operated in the country, including, among others, the National League for Human Rights, the Organization for Human Rights and Freedoms, the Association of Women Against Violence, and the Cameroonian Association of Female Jurists.

The Government harassed and arrested NGO members during the year. For example, on July 21, gendarmes arrested and detained Joseph Chongsi of the Center for Human Rights and Peace Advocacy under false pretenses; they alleged that he had not paid a debt. He was released on July 23 and received an official apology from the Prison Administrator in Bamenda.

There have been no further developments in the 2003 arrest of Abdoulaye Math, who was awaiting trial at year's end.

During its June/July session, the National Assembly greatly expanded the role and powers of the NCHRF. The Commission was granted the authority to summon witnesses and to publish their reports and the findings of their investigations. While the NCHRF remained hampered by a shortage of funds, it conducted a number of investigations into human rights abuses, visited prisons, and organized several human rights seminars aimed at judicial officials, security personnel, and other government officers. In July, the NCHRF organized a 2-day seminar for NGOs and government officials to develop a training curriculum on human rights for law enforcement, members of the judiciary, and other citizens. Although the Commission infrequently criticized the Government's human rights abuses publicly, its staff intervened with government officials in specific cases of human rights abuses by security forces, attempted to stop Friday arrests (see Section 1.d.), and sought to obtain medical attention for jailed suspects in specific cases.

Section 5 Discrimination, Societal Abuses, and Trafficking in Persons

The Constitution does not explicitly forbid discrimination based on race, language, or social status. The Constitution prohibits discrimination based on sex and mandates that "everyone has equal rights and obligations"; however, the Government did not enforce these provisions effectively.

Women

The law does not specifically prohibit domestic violence, but assault is prohibited and was punishable by prison terms and fines; and in practice, domestic violence against women was common. While there were no reliable statistics on violence against women, a large number of newspaper reports indicated that the phenomenon was widespread. Women's rights

advocates reported that the law does not impose effective penalties against men who commit acts of domestic violence. There were no gender-specific assault laws, despite the fact that women were the predominant victims of domestic violence. Spousal abuse was not a legal ground for divorce. In cases of sexual assault, a victim's family or village often imposed direct, summary punishment on the suspected perpetrator through extralegal means, ranging from destruction of property to beating.

The law prohibits rape, and although rape occurred, police and the courts investigated and prosecuted cases of rape, which resulted in some convictions during the year. Official and private media regularly covered rape cases handled by the courts during the year.

The law does not prohibit female genital mutilation (FGM), and FGM was not practiced widely; however, it continued to be practiced in isolated areas in 3 of the 10 provinces, including some areas of Far North, Eastern, and Southwest Provinces. Internal migration contributed to the spread of FGM to different parts of the country. The majority of FGM procedures were clitorectomies; however, the severest form of FGM, infibulation, was performed in the Kajifu region of the Southwest Province. FGM usually was practiced on infants and pre-adolescent girls. During the year, the Government did not conduct programs to educate the population about the harmful consequences of FGM or prosecute any persons who allegedly performed FGM; however, the Association of Women Against Violence continued to conduct a program in Maroua to assist victims of FGM and their families and to educate local populations.

Despite constitutional provisions recognizing women's rights, women did not enjoy the same rights and privileges as men. Some points of civil law were prejudicial to women. The law allows a husband to oppose his wife's right to work in a separate profession if the protest is made in the interest of the household and the family; a husband also may end his wife's commercial activity by notifying the clerk of commerce tribunal of his opposition based upon the family's interest. Partly for this reason, some employers required a husband's permission before hiring female employees.

Customary law was far more discriminatory against women, since in many regions a woman customarily was regarded as the property of her husband. Because of the importance attached to customs and traditions, laws protecting women often were not respected. In the customary law of some ethnic groups, husbands not only maintained complete control over family property, but also could divorce their wives in a traditional court without being required to provide either verifiable justification or alimony. Polygyny was permitted by law and tradition. In cases of divorce, the husband's wishes determined the custody of children over the age of 6. While a man may be convicted of adultery only if the sexual act takes place in his home, a female may be convicted without respect to venue.

Traditional law normally governed the extent to which a woman may inherit from her husband in the absence of a will, and traditions varied from group to group. In many traditional societies, custom grants greater authority and benefit to male heirs than to female heirs. Women also faced the issue of forced marriage; in some regions, girls' parents could and did give girls away in marriage without the bride's consent. Often the husband, who could be many years older than his bride, paid his wife's parents a "bride price." Since a price had been paid, the girl was considered the property of the husband. When a married man died, his widow often was unable to collect any inheritance, since she herself was considered part of the man's property. Often the widow was forced to marry one of the deceased husband's brothers. If she refused, she had to repay the bride price in full and leave the family compound. In the Northern provinces, some Lamibe (traditional rulers) reportedly prevented their wives and concubines from leaving the palace. The lack of a national legal code covering such family issues often left women defenseless against these male-oriented customs.

On May 24, religious leaders, including Catholics, Protestants, and Muslims, launched a nation-wide program to fight violence against women.

Children

During the year, the Government made some efforts to protect children's rights and welfare, including participation in seminars on children's rights. The Constitution provides for a child's right to education, and schooling was mandatory through the age of 14 years. Since parents had to pay uniform and book fees for primary school, and because tuition and other fees for secondary education remained costly, education largely was unaffordable for many children. The Government took measures during the year to improve access to schools. On April 19, the Minister of National Education launched "Education-For All Week" to prioritize education for girls.

According to statistics from the Ministry, 72.2 percent of girls between the ages of 6 and 14 were enrolled in school, compared with 81.3 percent for boys of the same age group. The low education rate continued to be attributed to socio-cultural prejudices, early marriage, sexual harassment, unwanted pregnancy, and domestic chores.

On October 29, the Minister of Education and the Minister of Youth and Sports presented the results of a study on the country's education system. The study revealed a large disparity between the number of potential students and the capacity of the schools. According to the report, pre-schools served only 16 percent of all possible students. Within the entire school system, the northern provinces were the most underprivileged, with only 5.7 percent of all teachers working in the Adamawa, North, and Extreme North Provinces combined. The capacity of the schools was also inadequate. The study showed that elementary schools only had enough seats for 1.8 million students, although 2.9 million attended school. Another government report indicated that of 560 high schools throughout the country, only 33 schools had at least 50 percent of their students pass the baccalaureate exam.

Although illegal, in practice, girls continued to suffer from discrimination with respect to education throughout the country. The gap in school attendance was 14 percent nationally and 34 percent in the two most northern provinces. This problem, which especially was acute in rural areas, resulted in higher levels of illiteracy among women than men.

The exact degree of familial child abuse was not known; however, children's rights organizations targeted the problem. Newspaper reports often cited children as victims of kidnapping, mutilation, and even infanticide. There were several credible stories of mothers (usually young, unemployed, and unmarried) abandoning their newborns in streets, garbage cans, and pit toilets.

Despite the law that fixes a minimum age of 15 years for a bride, many families facilitated the marriage of young girls by the age of 12 years. Early marriage was prevalent in the northern provinces of Adamawa and the North, but it was especially characteristic of the remote Far North Province, where many young women faced severe health risks from pregnancies as early as 13 years of age.

FGM was performed primarily on young girls (see Section 5, Women).

There were reports of child prostitution and trafficking in children during the year (see Section 5, Trafficking).

Child labor remained a problem (see Section 6.d.).

Although exact numbers were unavailable, the country had a significant number of displaced or street children, most of whom resided in urban areas such as Yaounde and Douala.

Trafficking in Persons

The law does not specifically prohibit trafficking in persons, but the law does prohibit slavery, prostitution, forced labor, minimum age requirements for workers, and other crimes related to trafficking in persons, and trafficking remained a problem. Courts have prosecuted traffickers using various provisions of the Penal Code that address related crimes. The country was a source, transit, and destination point for internationally trafficked persons; trafficking also occurred within the country.

The law provides that any person who engages in crimes often associated with trafficking in persons shall be punished by 10 to 20 years of imprisonment. In May 2003, four individuals were arrested for their involvement in trafficking six children from the town of Obala to Yaounde. One of these individuals was convicted and sentenced to 8 years in prison. There was no information about the other three individuals who were arrested. In mid-2003, there were unconfirmed reports that police intervened to protect 12 victims of child trafficking in the North Province, but no traffickers were arrested in relation to that case. On April 21, President Biya ratified three anti-trafficking conventions, including the Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children, Supplementing the United Nations Convention Against Transnational Organized Crime.

The Ministry of Labor, Employment, and Social Insurance was primarily responsible for fighting trafficking; however, the Ministry was severely underfunded. It was believed that authorities prosecuted several trafficking cases during the year, but actual rates were difficult to determine since traffickers could be prosecuted under various sections of the penal code and there was no system for tracking outcomes. The Government continued to fight trafficking through the use of an interagency committee and a program to find and return trafficked children. In addition, the Government cooperated with Gabon, Nigeria, Togo and Benin in fighting trafficking, through the exchange of information and preparation of common legislation on trafficking.

Women and children traditionally have faced the greatest risk of trafficking and have been trafficked most often for the purposes of sexual exploitation and forced labor. Most trafficking in children occurred within the country's borders, while most trafficked women were transported out of the country. According to anecdotal evidence by the NCHRF, women often were "hired" into hubs of prostitution, often in Europe. The method for trafficking women usually involved a marriage proposition by a foreign businessman. The woman was inducted into servitude upon arrival at a foreign destination. Girls were internally trafficked from the Adamawa, North, the Far North provinces, and from the Northwest Province to Douala and Yaounde to work as domestic servants, street vendors, or prostitutes. Children were also internally trafficked to work on cocoa bean plantations. There have been credible reports of slavery, particularly in the Rey Bouba Division of North Province, inside the closely guarded compound of a local chieftain, where authorities were unable to assert control. Parents sometimes offered their young daughters to the Lamido of the North Province of the Rey Bouba as gifts.

During the year, human rights organizations in Bamenda in the Northwest Province reported the existence of radio ads offering to take adolescent girls between the ages of 10 and 17 to Yaounde and Douala for domestic labor. The organization offered to pay transportation and a finder's fee to persons who recruited children for domestic labor.

A 2000 International Labor Organization (ILO) study conducted in Yaounde, Douala, and Bamenda, revealed that trafficking accounted for 84 percent of child laborers. In most cases, intermediaries presented themselves as businessmen, approaching parents with large families or custodians of orphans and promising to assist the child with education or professional training. The intermediary paid parents an average of \$12 (6,000 CFA francs) before transporting the child to a city where the intermediary would subject the child to forced labor with little remuneration. In 4 out of 10 cases, the child was a foreigner transported to the country for labor. The report also indicated that the country was a transit country for regional traffickers, who transported children between Nigeria, Benin, Niger, Chad, Togo, the Republic of the Congo, and the Central African Republic for indentured or domestic servitude, farm labor, and sexual exploitation. Citizens also were trafficked to South Africa.

The Institute for Socio-Anthropologic Research (IRSA) of the Yaounde-based Catholic University of Central Africa continued an ILO-sponsored Exploratory Study on Child Trafficking during the year.

During the year, the ILO and the Government continued to support an awareness campaign to eradicate child trafficking in airports. Special anti-trafficking embarkation/disembarkation cards continued to be designed and distributed. The cards described the dangers of trafficking and how to recognize the phenomenon.

The Government continued to work with local and international NGOs to provide temporary shelter and assistance to victims of trafficking. The Catholic Relief Service worked to combat corruption in local schools that led to child prostitution.

On June 10, the Cameroon Red Cross and an Austrian NGO, SOS Kinderdorf, signed a convention to protect impoverished children who were at the greatest risk of being trafficked or being involved in the worst forms of child labor. UNICEF was also actively engaged in combating girls' prostitution throughout the year.

Persons with Disabilities

The law provides certain rights to persons with disabilities, including access to public institutions, medical treatment, and education, and the Government was obliged to bear part of the educational expense of persons with disabilities, to employ them where possible, and to provide them with public assistance when necessary; however, the Government rarely honored these obligations. There were few facilities for persons with disabilities and little public assistance; lack of facilities and care for persons with mental disabilities particularly was acute. Society largely tended to treat those with disabilities as outcasts, and many felt that providing assistance was the responsibility of churches or foreign NGOs. The law does not mandate special access provisions to private buildings and facilities for persons with disabilities.

National/Racial/Ethnic Minorities

The population was divided into more than 200 ethnic groups, among which there were frequent and credible allegations of discrimination. Ethnic groups commonly gave preferential treatment to fellow ethnic group members both in business and social practices.

Members of President Biya's Beti/Bulu ethnic group from southern parts of the country held key positions and were disproportionately represented in government, civil service, state-owned businesses, the security forces, and the ruling CPDM party.

The M'Bororo, a semi-nomadic Fulani people whose main economic activity is cattle raising, were given rights over pastoral land in the Northwest Province by the British colonial government; however, in 1986, Alhadji Baba Ahmadou Danpullo, a prominent businessman and member of the ruling party, established a commercial ranch in Ndawara, Northwest Province. During the year, the M'Bororo continued to claim that over 18 years, Danpullo has forcibly displaced them, seized their land, cattle, and women, and used his money and influence with the Government to order the beating and false imprisonment of members of the M'Bororo. On March 23, a Bamenda Court of Appeals ordered the release of three of the four M'Bororo youths arrested by Bamenda police in 2002, Adamu Issa, Yunussa Bagoji, and Haman Usmanu. The fourth individual had unsuccessfully attempted to escape prior to the Court's ruling and remained in detention at year's end. A special government commission of inquiry had reportedly finished hearing testimony and completed its research but had not released the results of its investigation by year's end.

Northern areas of the country suffered from ethnic tensions between the Fulani (or Peuhl) and the Kirdi. The Kirdi remained socially, educationally, and economically disadvantaged relative to the Fulani in the three northern provinces. Traditional Fulani rulers, called Lamibe, continued to wield great power over their subjects, often including Kirdi, sometimes subjecting them to tithing and forced labor. During the year, isolated cases of slavery were reported, largely Fulani enslavement of Kirdi.

Natives of the North West and South West Provinces have tended to support the opposition party SDF and have suffered disproportionately from human rights violations committed by the Government and its security forces. The Anglophone community has been underrepresented in the public sector. Anglophones generally believed that they had not received a fair share of public sector goods and services within their two provinces. Some residents of the Anglophone region sought greater freedom, equality of opportunity, and better government by regaining regional autonomy rather than through national political reform and have formed several quasi-political organizations in pursuit of their goals.

At least one Anglophone group, the SCNC, advocates secession from the country. During the year, security forces harassed and arrested the participants of SCNC meetings (see Section 1.d.). The Government also continued to hold some SCNC activists or suspected SCNC supporters in temporary detention without charge. The opposition SDF party, whose base of

support resides in the Anglophone provinces, reiterated its commitment to pursue a nonviolent political struggle toward the restoration of a federal republic.

Some members of the country's large community of Nigerian immigrants complained of discrimination and abuse by government officials (see Section 1.c.). Government officials repeatedly have announced crackdowns on undocumented Nigerian immigrants, and illegal immigrants were subject to harassment on some occasions.

Indigenous People

A population of approximately 50,000 to 100,000 Baka (Pygmies), a term that encompasses several different ethnic groups, primarily resided (and were the earliest known inhabitants) in the forested areas of the South and East provinces. While no legal discrimination exists, other groups often treated the Baka as inferior and sometimes subjected them to unfair and exploitative labor practices. Baka reportedly continued to complain that the forests they inhabit were being logged without fair compensation. Some observers believe that sustained logging was destroying the Baka's unique, forest-oriented belief system, forcing them to adapt their traditional social and economic systems to a more rigid modern society similar to their Bantu neighbors. Local Baka along the path of the Chad-Cameroon pipeline continued to complain that they were not compensated fairly for their land. Others alleged that they had been cheated of their compensation by persons posing as Baka representatives.

An estimated 95 percent of Baka did not have national identity cards; most Baka could not afford to provide the necessary documentation to obtain national identity cards, which were required to vote in national elections. In early May, Plan International and another NGO launched a program to educate Bakas about their political rights, which included the construction of a communal radio in the region of Abong-Mbang (Upper Nyong Division, East Province). In July, the Association of Boumba and Ngoko Divisional Councils conducted a campaign through which they were able to issue hundreds of identification cards to Bakas in the East Province, thereby allowing these individuals to register and vote.

Other Societal Abuses and Discrimination

Homosexuality is illegal under the penal code, with a possible prison sentence of between 6 months and 5 years and a possible fine ranging from approximately \$38 to \$380 (20,000 to 200,000 CFA francs). While prosecution under this law was rare, homosexuals suffered from harassment and extortion by law enforcement officials. During the year, there were organizations that advocated for the rights of homosexuals, including the Association of Justice and Rights for all.

Section 6 Worker Rights

a. The Right of Association

The law allows workers to form and join trade unions; however, the Government imposed numerous restrictions. The law does not permit the creation of a union that includes both public and private sector workers, or the creation of a union that includes different, even closely related sectors.

The law requires that unions register with the Government, permitting groups of at least 20 workers to organize a union by submitting a constitution, internal regulations, and non-conviction certifications for each founding member. The law provides for prison sentences and fines for workers who form a union and carry out union activities without registration. Government officials said that it remits certification within 1 month of union application; however, in practice, independent unions, especially in the public sector, have found it difficult to register. In addition, the requirement for union registration contradicts ILO Convention 87, which states that unions have the right to exist through declaration and without government recognition or registration.

Registered unions were subject to government interference. The Government chose the unions with which it would bargain; some independent unions accused the Government of creating small non-representative unions amenable to government positions and with which it could "negotiate" more easily. Some sections of labor law have no force or effect because the presidency had not issued implementing decrees.

The law prohibits anti-union discrimination, and employers guilty of such discrimination were subject to fines up to approximately \$1,600 (1 million CFA francs). However, employers found guilty were not required to compensate the workers against whom they discriminated or to reinstate fired workers. The Ministry of Labor did not report any complaints of such discrimination during the year, although there have been credible press reports of union leader harassment.

Unlike in the previous year, the Government did not arrest union leaders. There were no new developments in the 2003 arrest of railroad union president Benoit Essiga and his six colleagues.

b. The Right to Organize and Bargain Collectively

The law provides for collective bargaining between workers and management as well as between labor federations and business associations in each sector of the economy, and formal collective bargaining negotiations took place during the year. There are no export processing zones.

When labor disputes arose, the Government chose the labor union with which it would negotiate, selectively excluding some labor representatives. Once agreements were negotiated, there was no mechanism to enforce implementation; some agreements between the Government and labor unions were then ignored by the Government.

On August 25, the Minister of Employment, Labor, and Social Insurance signed a collective bargaining agreement with the building constructions and public works sector. This agreement was the result of consultations between the employers' association, worker unions, and the Government.

The Labor Code explicitly recognizes workers' right to strike but only after mandatory arbitration, and workers exercised this right during the year. Arbitration decisions were not enforceable by law and could be overturned or simply ignored by the Government or employers. The provision of the law allowing persons to strike does not apply to civil servants, employees of the penitentiary system, or workers responsible for national security. Instead of strikes, civil servants were required to negotiate grievances directly with the minister of the appropriate department in addition to the Minister of Labor.

The law provides for the protection of workers engaged in legal strikes and prohibits retribution against them, and in practice, these elements of the law were respected.

Since May 2003, workers of the National Agency for Support to Forestry Development began a strike, demanding salary payments 7 months in arrears. In November 2003, the strike was suspended but resumed on March 17. The 650 workers occupied the compound of the company, and occasionally erected roadblocks on the road leading to their working place. On May 5, the Government paid the 7 months of salary arrears, and at the same time terminated the contracts of all workers. An ad hoc committee was put in place to study the modalities for the payment of workers' severance dues. The question of which workers, if any, would be hired back remained unresolved at year's end.

c. Prohibition of Forced or Compulsory Labor

The law prohibits forced or compulsory labor; however, it occurred in practice. Authorities continued to allow prison inmates to be contracted out to private employers or used as communal labor for municipal public works.

There were isolated reports that slavery continued to be practiced in northern parts of the country (see Section 5). In the South and East Provinces, some Baka (Pygmies), including children, continued to be subjected to unfair and exploitative labor practices by landowners, and worked on the landowners' farms during harvest seasons without payment (see Section

5).

The Government does not expressly prohibit forced and compulsory labor by children, and there were reports that these practices occurred (see Section 5).

d. Prohibition of Child Labor and Minimum Age for Employment

The law generally protects children in the fields of labor and education and specifies penalties ranging from fines to imprisonment for infringement; however, child labor remained a problem.

The law sets a minimum age of 14 for child employment, bans night work, and enumerates tasks that children under the age of 18 cannot legally perform. These tasks included moving heavy objects, dangerous and unhealthy tasks, working in confined areas, and prostitution. The law also states that a child's workday cannot exceed 8 hours. Employers were required to train children between the ages of 14 and 18, and work contracts must contain a training provision for minors. The prohibition against night work was not enforced effectively.

Information on child labor was difficult to obtain; however, according to a 2000 study by the ILO and Ministry of Labor, child labor existed chiefly in urban areas and in the informal sector such as street vending, car washing, agricultural work, and domestic service. Many urban street vendors were less than 14 years of age. An increasing number of children worked as household help, and some children were involved in prostitution. In the north, there were credible reports that children from needy homes were placed with other families to do household work for pay. In the nation's major cities of Yaounde, Douala, and Bamenda, the ILO estimated in 2000 that 40 percent of employed children were girls, of whom 7 percent were less than 12 years of age, and 60 percent had dropped out of primary school.

Parents viewed child labor as both a tradition and a rite of passage. Relatives often employed rural youth, especially girls, as domestic helpers, and these jobs seldom allowed time for the children to attend school. In rural areas, many children began work at an early age on family farms. The cocoa industry also employed child laborers.

The Government does not specifically prohibit forced and compulsory labor by children, and there were reports that it occurred in practice (see Section 5).

The Ministry of Social Affairs and the Ministry of Labor were responsible for enforcing existing child labor laws through site inspections of registered businesses; however, the Government did not allocate sufficient resources to support an effective inspection program. Moreover, the legal prohibitions do not include family chores, which in many instances were beyond a child's capacity. During the year, the Government employed 58 general labor inspectors to investigate child labor cases.

The ILO/West Africa Cocoa/Agriculture Program to eliminate child labor was launched in the country in June 2003. The program's stated objective was to remove 1,000 children from hazardous work in the cocoa sector over 2 years. According to the project coordinator, by December, more than 850 children had been removed from forced labor situations.

On June 12, the Government, the ILO, and other partners organized numerous activities to mark the World Day Against Child Labor, which specifically highlighted child domestic labor. Among the activities organized were a national media campaign and a soccer match to raise awareness of child labor and trafficking.

On October 22, the Minister of Labor signed an agreement with the ILO to allow the ILO to work more effectively to eradicate child labor. The agreement established specific contact persons in various ministries and agencies involved in antitrafficking activities; it also gave the ILO the possibility to freely conduct nationwide investigations and cooperate with local organizations of its choice.

e. Acceptable Conditions of Work

Under the law, the Ministry of Labor was responsible for setting a single minimum wage nationally, applicable in all sectors. The minimum wage was approximately \$40 (23,514 CFA francs) per month. The wage did not provide for a decent standard of living for an average worker and family.

The law establishes a standard workweek of 40 hours in public and private nonagricultural firms and 48 hours in agricultural and related activities. The law mandates at least 24 consecutive hours of weekly rest.

The Government sets health and safety standards. Ministry of Labor inspectors and occupational health physicians were responsible for monitoring these standards; however, they lacked the resources for a comprehensive inspection program. There was no specific legislation permitting workers to extricate themselves from dangerous work situations without jeopardizing continued employment. Illegal foreign workers were not able to claim legal protections.

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